

At the plenary session on August 2, 2023, the European Data Protection Board adopted a decision on the resolution of disputes based on Article 65 of the General Data Protection Regulation concerning the draft decision of the Irish Data Protection Authority in the case of TikTok. The binding decision relates to legal issues arising from objections to the draft decision of the Irish Data Protection Authority as the lead supervisory authority regarding the data controller Technology Limited (TTL). The binding decision of the European Data Protection Board ensures that national data protection authorities apply the General Data Protection Regulation correctly and consistently.

Following an investigation conducted ex officio, the Irish Data Protection Authority issued a draft decision regarding the processing of personal data of registered TikTok users aged 13 to 17, as well as certain issues related to the processing of personal data of children under the age of 13. As consensus was not reached on the objections raised by the data protection authorities, the European Data Protection Board was called upon to resolve the dispute between the data protection authorities within two months.

The objections related, among other things, to the question of whether there was a violation of the technical and integrated data protection established in Article 25 of the General Data Protection Regulation concerning the verification of the age of TikTok users and whether there was a violation of the principle of fairness regarding certain features of the user system design.

The lead supervisory authority (the Irish Data Protection Authority) will make its final decision based on the binding decision of the European Data Protection Board, taking into account the legal assessment of the EDPB, no later than one month after the European Data Protection Board communicated its decision. The European Data Protection Board will publish its decision on its website after the lead supervisory authority notifies the data controller of its national decision.